



DEPARTMENT OF HIGHER EDUCATION

Historical Society

STATE REGISTER OF HISTORIC PLACES

8 CCR 1504-5

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

STATEMENT OF BASIS AND PURPOSE:

A State Register of Historic Places was established in 1975 by CRS 24-80 1-101 to 108. The law authorizes the State Historical Society to prepare and promulgate rules and procedures by which properties shall be determined to be eligible for, nominated to and included in, or removed from the State Register.

The purpose of the rules is to implement the statutes, so that the public, interested organizations, and state agencies and departments may actively participate in the nomination of properties to the State Register, in reviews of proposed actions by state agencies affecting properties listed in the State Register, and to assure that eligible properties within Colorado are included in the State Register.

1. IMPLEMENTATION

These rules and procedures implement the Act creating the State Register of Historic Places, CRS 24-80.1-101 to 108, and should be used and read in conjunction with the law. All definitions found in CRS 24-80.1-102 are incorporated by reference herein.

2. NOMINATION TO THE STATE REGISTER

2.1 Nominations to the State Registers all be submitted to the Society on official nomination forms provided by the Society.

2.2 A complete nomination shall include, but not be limited to: the property's address and legal description; the owner(s) name, address and telephone number; a physical description of the property; a statement of historical significance; and current photographs of the property. All nominations shall include the owner's written approval of the property's nomination to and inclusion in the State Register.

2.3 Within fourteen (14) calendar days of receipt of a nomination, the Society shall review the nomination on form, content, and sufficiency of information.

2.4 A nomination which is incomplete or does not contain sufficient information shall be returned to the applicant for additional information.

2.5 A complete nomination shall be accepted and scheduled for review by the State Register Review Board. The Society shall notify the owner and the nominator of the property as to the date, time, and location of the State Register Review Board meeting.

3. CRITERIA FOR EVALUATION OF A PROPERTY NOMINATED TO THE STATE REGISTER

Criteria for inclusion in the State register are those provided in CRS 24-80.1-107 (1).

4. STATE REGISTER REVIEW BOARD

4.1 The State Register Review Board shall consist of a minimum of five and a maximum of fifteen persons, the majority of whom shall be recognized professionals in the fields of history, prehistory and historic archaeology, architectural history, and architecture. In addition to these members, the two advisors from the State of Colorado to the National Trust for Historic Preservation shall serve as voting ex officio members of the State Register Review Board.

4.2 Members of the State Register Review Board shall be appointed by the Board of Directors of the Society and shall serve two-year terms so that no more than one-half of the members' terms expire in any given year. Members may be reappointed. Vacancies shall be filled in the same manner as original appointments for the remainder of the unfilled term, and such appointees may be reappointed to a regular term following such service.

4.3 The State Register Review Board shall meet a minimum of three (3) times during each calendar year.

4.4 The duties of the State Register Review Board are to review all accepted State Register nominations and issue a recommendation to the Board of Directors of the Society for the nominated property's inclusion in, denial of inclusion in, or removal from the State Register. The recommendation of the State Register Review Board shall be based on its determination of the property's historical significance and whether or not the property meets the criteria for evaluation. CRS 24-80.1-102 (6); CRS 24-8C 107 (1).

5. INCLUSION OF NOMINATED PROPERTY IN THE STATE REGISTER

5.1 Within thirty (30) calendar days of the meeting at which the nominated property is considered by the State Register Review Board, the Board of Directors of the Society shall determine whether the property is to be included in the State Register. Such determination shall be based on the recommendation of the State Register Review Board as well as other pertinent information. CRS 24-80.1-105 (2).

5.2 Upon final determination to include a property in the State Register, by the Board of Directors of the Society, the nominated property shall be officially included in the State Register.

6. REMOVAL OF PROPERTIES FROM THE STATE REGISTER

6.1 Properties that cease to meet the criteria for listing in the State Register because the qualities which caused them to be originally listed have been lost or destroyed may be removed from the State Register.

6.2 Requests for removal shall be submitted to the Society on official forms provided by the Society.

6.3 Within fourteen (14) calendar days of receipt of a request for removal, the Society shall review the request on form, content, and sufficiency of information.

6.4 A request which is incomplete or does not contain sufficient information shall be returned to the requesting party for additional information.

6.5 A complete request for removal shall be accepted and scheduled for review by the State Register Review Board. The Society shall notify the owner and the requesting party as to the date, time, and location of the State Register Review Board meeting.

6.6 Within thirty (30) calendar days of the meeting at which the removal of the subject property is considered by the State Register Review Board, the Board of Directors of the Society shall determine whether the property is to be removed from the State Register. Such determination shall be based on the recommendation of the State Register Review Board as well as other pertinent information.

6.7 Upon final determination to remove a property from the State Register, by the Board of Directors of the Society, the nominated property shall be officially removed from the State Register.

6.8 Properties removed from the National Register of Historic Places are not removed from the State Register unless the procedures established in this section have been followed.

7. STATE REGISTER OF HISTORIC PLACES

7.1 In addition to all properties included in the National Register (CRS 24-80.1-105 (3)), the State Register shall include all nominated properties receiving final determination to be included in the State Register in accordance with these rules and procedures.

7.2 An official list of all properties included in the State Register shall be maintained by the Society and shall be accessible to the public.

7.3 Agencies and others shall be notified of additions or deletions to the State Register by periodic publication in the Society's newsletter.

8. REVIEW OF PROPOSED ACTIONS BY STATE AGENCIES

8.1 At the earliest stages of planning or consideration of a proposed action, the agency initiating the action should contact the Society to determine whether properties of historical significance may be located within the area of the proposed action.

8.2 When a state agency action may adversely affect a property fifty or more years old, the agency should seek the Society's determination as to whether such property is of historical significance. If the property is determined to be of historical significance as defined in CRS 24-80.1-102 (6), the agency shall request the Society's determination of effect on such property. CRS 24-80.1-104 (2) (a).

8.3 As provided in CRS 24-80.1-104, state agencies considering actions which may have an effect on a property or properties included in the State Register shall notify the Society in writing of the proposed action and shall request the Society's determination of effect on such properties.

Editor's Notes

History